

SMALL, WOMEN-OWNED, MINORITY-OWNED, AND SERVICE-DISABLED VETERAN-OWNED BUSINESSES

It is the intent of Loudoun County School Board to undertake every reasonable effort to facilitate the participation of small businesses; businesses owned by women, minorities, and service-disabled veterans; in all aspects of procurement to the maximum extent feasible. LCPS shall rely on the accuracy of the certified vendors listed on the Virginia Department of Small Business and Supplier Diversity (DSBSD) Directory.

A. Definitions

1. Minority Individual. Minority individual is an individual who is a citizen of the United States or a legal resident alien and who satisfies one or more of the definitions identified in the Virginia Public Procurement Act.

2. Minority-Owned Business. Minority-owned business is a business that is at least 51 percent owned by one or more minority individuals who are U.S. citizens or legal resident aliens, or in the case of a corporation, partnership, or limited liability company or other entity, at least 51 percent of the equity ownership interest in the corporation, partnership, or limited liability company or other entity is owned by one or more minority individuals who are U.S. citizens or legal resident aliens, and both the management and daily business operations are controlled by one or more minority individuals, or any historically black college or university as defined in § 2.2-1604, regardless of the percentage ownership by minority individuals or, in the case of a corporation, partnership, or limited liability company or other entity, the equity ownership interest in the corporation, partnership, or limited liability company or other entity.

3. Service Disabled Veteran. Service-disabled veteran is a veteran who (i) served on active duty in the United States military ground, naval, or air service, (ii) was discharged or released under conditions other than dishonorable, and (iii) has a service-connected disability rating fixed by the United States Department of Veterans Affairs.

4. Service Disabled Veteran Business. Service disabled veteran business is a business that is at least 51 percent owned by one or more service-disabled veterans or, in the case of a corporation, partnership, or limited liability company or other entity, at least 51 percent of the equity ownership interest in the corporation, partnership, or limited liability company or other entity is owned by one or more individuals who are service disabled veterans and both the management and daily business operations are controlled by one or more individuals who are service-disabled veterans.

5. Small Business. A small business is a business, independently owned and controlled by one or more individuals who are U.S. citizens or legal resident aliens, and together with affiliates, has 250 or fewer employees, or annual gross receipts of \$10 million or less averaged over the previous three years. One or more of the

individual owners shall control both the management and daily business operations of the small business.

6. Women-Owned Business. A women-owned business is a business that is at least 51 percent owned by one or more women who are U.S. citizens or legal resident aliens, or in the case of a corporation, partnership, or limited liability company or other entity, at least 51 percent of the equity ownership interest is owned by one or more women who are U.S. citizens or legal resident aliens, and both the management and daily business operations are controlled by one or more women.

B. Responsibility and Authority. Procurement and Risk Management Division will:

1. Be responsible for reporting on the amount of business done with small, women-owned, service-disabled veterans and minority-owned businesses through central purchasing on an annual basis.

2. Provide training to enhance the purchase from small, women-owned, service-disabled veterans and minority-owned businesses.

3. Promote the use of small, women-owned, service-disabled veterans and minority-owned businesses in the School Division's purchasing activities that are consistent with competitive practices and departmental delegated authority.

4. Engage potential small, women-owned, service-disabled veterans and minority-owned businesses to register in LCPS Electronic Bidding System.

Adopted: 12/13/22

Legal Refs.: Code of Virginia, 1950, as amended, §§ [2.2-4300](#), et seq., as amended.
Virginia Public Procurement Act